As to the described facilities which are to be constructed, reconstructed, erected, or installed, this certificate shall be valid only with respect to those facilities the construction, reconstruction, erection, or installation of which is begun before the expiration of six months after the date of this certificate; and as to the described facilities which are to be acquired, or which are to be acquired and installed, this certificate shall be valid only with respect to those facilities acquired or contracted for before the expiration of six months after the date of this certificate.

This is interpreted as follows:

(a) *As to when construction begins.* The same rule has been adopted for time extension purposes as is applicable for predetermination purposes and as is set forth in section 4 (d) (4) of DPA Reg. 1, as amended February 14, 1952 (17 F. R. 1468); that is, that construction, reconstruction, erection, or installation is deemed to begin with the incorporation in place on the site by the applicant or by any other person pursuant to any contract, understanding, or arrangement directly or indirectly for or with the applicant, of physical materials as an integral and permanent part of any building, structure, or other real property (for example, the pouring or placing of footings or other foundations). Acquisition of land; engineering; contracting for construction; preparation of site; building of access roads; excavation; demolition; installation of service utilities required for construction; the fabrication, production, or processing of building materials or building equipment; or the acquisition of personal property to be installed in the building, structure, or other real property does not constitute beginning of construction, reconstruction, erection, or installation.

(b) *As to when acquisition is effected.* For the purpose of the time limitation provision, acquisition takes place when title passes or a contract to acquire is entered into.

(c) *Beginning of construction carries acquisitions connected therewith.* For the purpose of the time limitation provision, the requirements thereof are considered satisfied with regard to certified facilities to be acquired and used in connection with certified buildings or structures if the taxpayer begins the construction of such buildings or structures within the time specified: *Provided*, That the total dollar amount of the facilities which have been certified (without consideration of the percentage of certification) does not exceed $1,000,000, the beginning of construction of any structure certified will be considered to be the beginning of construction of all structures certified even though several separate structures are involved and even though one or more of the several separate structures may have been begun after the expiration of the period of time specified in the certificate, or any amendment thereof.

(Sec. 216, 64 Stat. 939; 26 U. S. C., Sup. 124A; E. O. 10200, Jan. 3, 1951, 16 F. R. 61)

DEFENSE PRODUCTION ADMINISTRATION,
JAMES P. DURKIN,
Assistant General Counsel.

[F. R. Doc. 53-1327; Filed, Feb. 5, 1953; 10:10 a. m.]

[DPA Regulation No. 1, Interpretation 2]

DPA REG. 1—ISSUANCE OF NECESSITY CERTIFICATES UNDER SECTION 124A OF THE INTERNAL REVENUE CODE

INTERPRETATION 2—VARIATIONS IN COSTS (SECTION 4 (j))

(a) Defense Production Administration Regulation No. 1, as amended February 14, 1952 (17 F. R. 1468), Issuance of Necessity Certificates Under Section 124A of the Internal Revenue Code, provides in section 4 (j) thereof that where the actual description or cost of a certified facility varies or will vary so materially from the description or cost in the application for certificate as to put in question the identity of the facility, the taxpayer may request an amendment of the certificate by filing a statement with the Certifying Authority setting forth the revised description or cost. This section also provides that, if the Certifying Authority is of the opinion that the varied or changed costs or descriptions are within the scope of the original certification, the amended Appendix A will be forwarded by the Certifying Authority to the Commissioner of Internal Revenue for substitution for the original Appendix A attached to the original certificate to have the effect of an amendment thereof.

(b) It is to be considered that there is not so material a variation as to put in question the identity of the facility and therefore that the varied description or cost is within the scope of the original certification and no amendment is necessary in the following cases:

(1) *Where the facility acquired or constructed is the same as that certified even though the actual cost exceeds the cost of the facility as estimated in the certificate.* Such increased cost may arise from increases in materials or labor, or from other factors.

(2) *Where the facility acquired or constructed varies from the facility certified and the actual cost exceeds by not more than 15 percent the cost estimated in the certificate.* The variations contemplated include increases in area, size, or capacity; acquisitions from a manufacturer or construction by a builder other than the one set forth in the certificate; additional attachments or spare parts; or variations in construction.

(Sec. 216, 64 Stat. 939, 26 U. S. C., Sup. 124A; E. O. 10200, Jan. 3, 1951, 16 F. R. 61)

DEFENSE PRODUCTION ADMINISTRATION,
JAMES P. DURKIN,
Assistant General Counsel.

[F. R. Doc. 53-1326; Filed, Feb. 5, 1953; 10:10 a. m.]

TITLE 42—PUBLIC HEALTH

Chapter I—Public Health Service, Federal Security Agency

Subchapter E—Fellowships, Internships, Training

PART 61—FELLOWSHIPS

TRAVEL EXPENSES; REGULAR FELLOWSHIPS

1. The first sentence of paragraph (d) of § 61.9 is hereby amended to read as follows:

(d) *Travel expenses; regular fellowships.* Any individual awarded a regular fellowship may, when authorized in advance by the Public Health Service, be granted separate allowances for transportation and subsistence expenses, not exceeding such amounts as may be prescribed by the Surgeon General, on account of (1) travel to the place at which he is to be located during the term of the fellowship; (2) travel required in carrying out the purposes of the fellowship, including attendance at meetings; and (3) travel to return him at the end of the fellowship term to his home or other place he left to carry out the fellowship, provided such return travel is to or from a place outside the continental United States. * * *

(Sec. 215, 58 Stat. 690; 42 U. S. C. 216. Interprets or applies sec. 301, 58 Stat. 691, as amended, sec. 433, 64 Stat. 444; 42 U. S. C. and Sup. 241, 289c)

2. The foregoing amendment shall be effective on publication in the FEDERAL REGISTER.

[SEAL] LEONARD A. SCHEELE,
Surgeon General.

Approved: February 2, 1953.

OVETA CULP HOBBY,
Federal Security Administrator.

[F. R. Doc. 53-1276; Filed, Feb. 5, 1953; 8:54 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 882]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDERS NO. 4719 OF SEPTEMBER 12, 1927, AND NO. 5352 OF MAY 23, 1930; RESERVING PORTION OF RELEASED LANDS FOR USE OF DEPARTMENT OF THE AIR FORCE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

1. Executive Orders No. 4719 of September 12, 1927, and No. 5352 of May 23, 1930, reserving certain public lands in Alaska for the use of the Bureau of Biological Survey, Department of Agriculture, in connection with its reindeer experiment station, are hereby revoked so far as they affect the following-described lands:

FAIRBANKS MERIDIAN

T. 1 N., R. 1 W.,
Sec. 4, S½SE¼;
Sec. 8, that part lying southeast of the right-of-way of the Tanana Valley Railroad;
Secs. 9, 10, and sec. 11, with the exception of the areas included in U. S. Surveys Nos. 855, 1717, 1720, and 1790;
Sec. 14, N½ and N½SE¼;
Sec. 15, N½, N½SW¼, and NW¼SE¼;
Secs. 17 and 18, those parts lying southeast of the right-of-way of said railroad;
Sec. 19, that part of N½ lying southeast of the right-of-way of said railroad;
Sec. 20, W½;
Sec. 29, SE¼SW¼ and NE¼SE¼.

T. 1 N., R. 2 W.,
Sec. 24, that part lying southeast of the right-of-way of the Tanana Valley Railroad;
Sec. 25, N½;
Sec. 26, that part of E½ lying southeast of the right-of-way of said railroad.

The areas described aggregate approximately 5,185 acres of public land.

2. Subject to valid existing rights the following-described public lands in Alaska, a portion of the lands described in paragraph 1 hereof, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws and the mineral-leasing laws, and reserved under the jurisdiction of the Secretary of the Air Force, for military purposes:

T. 1 N., R. 1 W.,
Sec. 15, SW¼NW¼SW¼;
Sec. 17, SE¼.

The areas described aggregate 170 acres.

It is intended that the above-described lands shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

3. The status of the following-described lands shall not be changed until it is so provided by an order of classification to be issued by the Regional Administrator, Bureau of Land Management, Anchorage, Alaska, opening the lands to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended, with a ninety-one-day preference-right period for filing such applications by veterans of World War II and others entitled to preference:

FAIRBANKS MERIDIAN

T. 1 N., R. 1 W.,
Sec. 19, that part of N½ lying southeast of the right-of-way of the Tanana Valley Railroad;
Sec. 20, W½;
Sec. 29, SE¼SW¼ and NE¼SE¼.
T. 1 N., R. 2 W.,
Sec. 26, SE¼.

The areas described aggregate approximately 840 acres.

4. The remaining lands described in paragraph 1 shall become subject to application on the dates and in the manner hereinafter provided. No application for such lands may be allowed under the above-mentioned Small Tract Act of June 1, 1938, as amended, unless the land shall be classified as valuable or suitable for such type of application upon consideration of an application. These lands are mainly of limited suitability for grazing or forestry.

5. This order shall not otherwise become effective to change the status of the lands described in paragraph 4 until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, such lands shall be subject only to (1) application under the homestead laws or the Alaska Home Site Act of May 26, 1934, 48 Stat. 809 (48 U. S. C. 461), or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

6. A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

7. Applications for these lands, which shall be filed in the Land Office, Bureau of Land Management, Fairbanks, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 65 and 66 of Title 43 of the Code of Federal Regulations, and applications under the said Alaska Home Site Act of May 26, 1934, and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in §§ 64.6 to 64.10, inclusive, and Part 257 of that title.

8. Inquiries concerning these lands shall be addressed to the Manager, Land Office, Fairbanks, Alaska.

JOEL D. WOLFSOHN,
Assistant Secretary of the Interior.

FEBRUARY 2, 1953.

[F. R. Doc. 53–1246; Filed, Feb. 5, 1953; 8:51 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Bureau of Customs

[417.0]

ASPARAGIN

TARIFF CLASSIFICATION

FEBRUARY 2, 1953.

The Bureau by its letter to the collector of customs at Detroit, Michigan, dated February 2, 1953, ruled that asparagin is properly classifiable as an acid, not specially provided for, under paragraph 1, Tariff Act of 1930, rather than as a drug, advanced, under paragraph 34 of the tariff act.

This decision will be effective as to such or similar merchandise entered for consumption or withdrawn from warehouse for consumption after 90 days after the date of publication of the abstract of this decision in a forthcoming issue of the weekly Treasury Decisions.

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

[F. R. Doc. 53–1245; Filed, Feb. 5, 1953; 8:50 a. m.]

[493.1]

RONDELLES FOR JEWELRY

PROSPECTIVE TARIFF CLASSIFICATION

FEBRUARY 2, 1953.

It appears probable that rondelles, each consisting of two small circular metal disks or stampings which when placed together hold rhinestones or other imitation precious stones, are properly classifiable under paragraph 1527 (d), Tariff Act of 1930, as stampings of metal, whether or not set with glass or paste, finished or partly finished, suitable for